

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1754

By: Moore

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 1-116, as amended by Section 1, Chapter 281, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1-116), which relates to positions in the school system; modifying definition; adding definitions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1-116, as amended by Section 1, Chapter 281, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1-116), is amended to read as follows:

Section 1-116. As used in this title:

1. "Teacher" means any person who is employed to serve as district superintendent, principal, supervisor, counselor, librarian, school nurse, athletic trainer, licensed physical therapist, physical therapist assistant, occupational therapist, occupational therapist assistant, or classroom teacher or in any other instructional, supervisory or administrative capacity. The person shall not be deemed qualified unless the person holds a valid

1 certificate issued by and in accordance with the rules of the State
2 Board of Education or the rules of the State Board of Career and
3 Technology Education, to perform the particular services for which
4 the person is employed;

5 2. "Superintendent" or "superintendent of schools" means the
6 executive officer of the board of education and the administrative
7 head of the school system of a district maintaining an accredited
8 school, provided the person holds an administrator's certificate
9 recognized by the State Board of Education;

10 3. "Principal" means any person other than a district
11 superintendent of schools having supervisory or administrative
12 authority over any school or school building having two or more
13 teachers. A teaching principal shall be a principal who devotes at
14 least one-half (1/2) the time school is in session to classroom
15 teaching. Teaching principals shall be required to hold
16 administrative certificates;

17 4. "Teachers" means, for purposes of complying with the State
18 Aid Law and other statutes, but not any other provision of law,
19 which apportion money on the basis of teaching units or the number
20 of teachers employed or qualified, all persons holding proper
21 certificates and connected in any capacity with the instruction of
22 pupils;

1 5. "Inductee" means any certified teacher who is employed in a
2 local school to serve as a classroom teacher under the guidance and
3 assistance of a mentor teacher or teachers;

4 6. "Student teacher" means any student who is enrolled in an
5 institution of higher learning approved by the State Board of
6 Education for teacher training and who is jointly assigned by the
7 institution of higher learning and a board of education of a school
8 district to perform practice teaching under the direction of a
9 regularly employed and certified teacher. A student teacher, while
10 serving an internship under the supervision of a certified teacher,
11 shall be accorded the same protection of the laws as that accorded
12 the certified teacher and shall be eligible to receive compensation
13 beginning on the first day of the internship for up to one full
14 school year; provided, however, that such compensation shall not be
15 considered compensation for purposes of teacher retirement or the
16 minimum salary schedule;

17 7. "School nurse" means a person employed full time by a board
18 of education who is a registered nurse licensed by the Oklahoma
19 State Board of Nurse Registration and Nursing Education and is
20 certified the same as a teacher by the State Board of Education.
21 Provided, that any person who is employed as a full-time school
22 nurse in any school district in Oklahoma who is not registered on
23 July 2, 1971, may continue to serve in the same capacity; however,
24 such person shall, under rules adopted by the State Board of

1 Education, attend classes in nursing and prepare to become
2 registered. A school nurse employed by a board of education shall
3 be accorded the same protection of laws and all other benefits as a
4 certified teacher;

5 8. "Athletic trainer" means a person employed full time by a
6 board of education who is a Certified Athletic Trainer with current
7 certification from the Board of Certification of the National
8 Athletic Trainers' Association and is also currently licensed to
9 practice in the state in accordance with the State Board of Medical
10 Licensure and Supervision. An athletic trainer employed by a board
11 of education shall be accorded the same protection of laws and all
12 other benefits as a certified teacher; ~~and~~

13 9. "Support employee" means an employee who provides those
14 services which are not performed by certified teachers, principals,
15 superintendents, or administrators and which are necessary for the
16 efficient and satisfactory functioning of a school district;

17 10. "Licensed physical therapist" means a person employed full
18 time by a board of education who is licensed as required in the
19 Physical Therapy Practice Act, a member of the American Physical
20 Therapy Association, and who regularly practices physical therapy.
21 A licensed physical therapist employed by a board of education shall
22 be accorded the same protection of laws and all other benefits as a
23 certified teacher;

1 11. "Physical therapist assistant" means a person employed full
2 time by a board of education who assists in the practice of physical
3 therapy subject to the direction and supervision of a licensed
4 physical therapist, who meets all the educational requirements, and
5 who is licensed pursuant to the provisions of the Physical Therapy
6 Practice Act, and who is a member of the American Physical Therapy
7 Association. A physical therapist assistant employed by a board of
8 education shall be accorded the same protection of laws and all
9 other benefits as a certified teacher;

10 12. "Occupational therapist" means a person employed full time
11 by a board of education who is licensed to practice occupational
12 therapy pursuant to the provisions of the Occupational Therapy
13 Practice Act and who is certified by the National Board for
14 Certification in Occupational Therapy. An occupational therapist
15 employed by a board of education shall be accorded the same
16 protection of laws and all other benefits as a certified teacher;
17 and

18 13. "Occupational therapist assistant" means a person employed
19 full time by a board of education who is licensed to provide
20 occupational therapy treatment under the general supervision of a
21 licensed occupational therapist pursuant to the provisions of the
22 Occupational Therapy Practice Act and who is certified by the
23 National Board for Certification in Occupational Therapy. An
24 occupational therapist assistant employed by a board of education

1 shall be accorded the same protection of laws and all other benefits
2 as a certified teacher.

3 SECTION 2. This act shall become effective November 1, 2025.

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